

ASA Gold Proxy Contest and Governance Struggle

Executive summary

ASA Gold and Precious Metals Limited ("ASA Gold"; NYSE: ASA) is a Bermuda-domiciled closed-end fund focused on precious-metals and mining equities. A multi-year proxy fight and related litigation has largely been driven by a structural valuation problem typical of closed-end funds: **ASA has traded at a persistent discount to NAV**, most recently around **-12.6%** (Bloomberg data as of 03/30/2026), meaning **closing the discount to 0% would mechanically imply ~+14.4% upside** to the market price if NAV stayed constant.

1

The contest has featured two core factions:

Saba Capital (activist) vs. Legacy/Incumbent governance defenders (aligned with the adviser and, later, a shareholder campaign led by ASA's COO). Saba's explicit thesis in its contested proxy materials is that ASA's board needs "fresh ideas" to address the **persistent discount** and governance/rights plan actions. 2 The legacy/defender side argues Saba is pursuing a **closed-end fund "arbitrage" playbook**, potentially including adviser replacement and/or mandate changes, and that "takeover defense" actions (poison pill/rights plans, committees) were meant to protect long-term shareholders. 3

Where the situation stands (as of 04/03/2026): **Saba appears to have consolidated meaningful influence**, including (i) **~24.64% beneficial ownership** disclosed in ASA's 2025 proxy statement and (ii) a board chaired by Saba partner Paul Kazarian. 4 Separately, ASA's board has initiated what looks like an endgame process: a **Special Committee "company review" supported by Cantor Fitzgerald** and a **90-day extension of the investment advisory agreement** with Merk Investments LLC (commencing 04/01/2026).

5

Return-maximizing voting view (evidence-based, conditional): For shareholders prioritizing **maximizing near- to medium-term value**, the highest-probability value catalyst is **credible discount-to-NAV reduction and/or NAV liquidity** (tender offer(s), structural change/combination, or liquidation/managed wind-down) executed with disciplined tax/cost controls. Because Saba's stated campaign focus is to force action on the discount and governance barriers, and because courts have criticized/invalidated parts of ASA's repeated rights-plan regime (inference of entrenchment cited in filings; rescission of a 2024 plan), **a vote that empowers the board faction most likely to execute a time-bound discount-realization plan** is the return-maximizing default. 6

However, this recommendation becomes **less certain** if Saba's path to value requires (a) replacing a performing adviser with an inferior one, (b) a mandate shift that destroys optionality in a gold-equity bull market, or (c) prolonged litigation/service-provider instability that overwhelms any discount-capture benefit. Those risks are expressly raised by the opposing side. 7

Assumption note: You did not provide a ticker; this report assumes **"Asa Gold" refers to ASA Gold and Precious Metals Limited (NYSE: ASA)** based on the proxy contest and SEC materials cited throughout. 8

Company and value drivers relevant to the proxy fight

ASA is a **closed-end precious-metals and mining equity fund**; as a closed-end structure, its shares can trade **above or below NAV** for extended periods. ASA's long-run history shows substantial NAV and share-price volatility and long stretches of discount trading (premium/discount chart through 12/31/2025). ⁹

The key return levers for shareholders are therefore dual:

Portfolio/NAV performance lever: The adviser's security selection and portfolio construction drives NAV. ASA discloses that shareholders approved an **investment advisory agreement with Merk Investments LLC on 04/12/2019**, and management emphasizes ongoing mandate execution and transparency. ¹⁰ Bloomberg-linked fund data (as displayed publicly) shows strong trailing total return recently (e.g., **1-year return ~92.81%** as of 03/30/2026), consistent with a powerful precious-metals equities regime. ¹¹

Structure/discount lever: Even with strong NAV performance, shareholders can under-realize returns if the market price remains discounted. Bloomberg data cited publicly shows **Premium/Discount ~ -12.60%** and average 52-week premium/discount around **-10.82%**. ¹¹ All else equal, closing a -12.6% discount implies about **+14.4% price uplift** ($1/(1-0.126)-1$), a magnitude large enough to dominate most single-year incremental alpha expectations. ¹¹

This arithmetic is the economic foundation of the activism.

Opposing factions, leadership, affiliations, and board slates

Saba-led dissident/activist faction

Leader and sponsor: **Saba Capital Management, L.P.** led by **Boaz Weinstein** (named filer in Saba's proxy materials). ¹²

Key directors/nominees associated with Saba during the contest:

In the **2024 annual meeting** contest, Saba nominated a **four-person slate: Ketu Desai, Frederic Gabriel, Paul Kazarian, Garry Khasidy**. ¹³

In the **2025 special meeting** solicitation, Saba's explicit ask was to **expand the board from 4 to 5** and appoint **Maryann Bruce** as an "Independent Nominee," which Saba said would yield a board majority together with its 2024-elected directors. ¹⁴

By the **2025 annual meeting cycle**, ASA's proxy statement lists a board/candidate set that includes multiple individuals with Saba governance ties. Specifically, the 2025 proxy statement describes: - **Paul Kazarian** (Saba portfolio manager since 2013) as **Chair of the Board (since 2025)** and director since 2024. ¹⁵
- **Ketu Desai** as trustee of Saba-related closed-end funds (BRW, SABA). ¹⁶
- **Karen Caldwell** as trustee of Saba-related funds (BRW, SABA). ¹⁶
- **Neal Neilinger** with prior trustee experience at a Saba fund (BRW, 2020–2021 per the proxy statement bio). ¹⁶

Stated objectives/strategy (as written in Saba filings): - **Close ASA's "persistent trading discount"**; Saba frames the central issue as shareholder dissatisfaction with the fund's inability to address the discount. ¹³

- Use board influence to stop/undo what it characterizes as **unlawful or entrenching "poison pills"** and end "assault on shareholder rights." ¹⁷

- Break board deadlock via added director and move governance forward. ¹⁴

Legacy/incumbent governance-defender faction aligned with adviser/management

Core legacy directors during the height of the dispute: ASA's 8-K disclosure describes a four-person board post-2024 AGM split into: - **"New Directors"** (elected on shareholder nomination) and

- **"Legacy Directors"** (re-elected on board nomination). ¹⁸

The legacy faction's governance tools were centered on committees, including a **Rights Plan Committee** and **Litigation Committee**, which the New Directors labeled "sham" committees (formed immediately before the 2024 AGM) and the legacy side defended as lawful and necessary under Bermuda bye-laws and the Investment Company Act framework. ¹⁹

A notable public-facing leader of the defender narrative (in 2025): **Axel Merk**, ASA's COO and founder/CIO of Merk Investments, filed extensive **shareholder solicitation materials** opposing Saba's board-expansion effort, arguing that Saba sought preemptive control and had not disclosed a strategy. ²⁰

Stated objectives/strategy (as written in defender-side filings/communications): - Preserve shareholder choice via a normal AGM process; oppose a special meeting that "preempts" the AGM. ²¹

- Argue Saba's playbook is **short-term discount-arbitrage** potentially inconsistent with a long-term precious-metals equity mandate, with a risk of adviser replacement or even fund "repurposing." ³

- Use rights plans (poison pills) to prevent or slow "creeping control" and force negotiations, in their stated view. ²²

Key events timeline

The following timeline synthesizes the most material filings, vote outcomes, and court actions disclosed in SEC filings and company/Business Wire releases. ²³

```
timeline
    title ASA Gold proxy contest, governance actions, and litigation (2019-2026)
    2019-04-12 : Shareholders approve investment advisory agreement with Merk Investments
    2023-12-31 : Board adopts limited-duration shareholder rights plan (poison pill)
    2024-01-31 : Saba files SDNY lawsuit seeking rescission/declaratory judgment re: rights plan
    2024-02-13 : Saba begins furnishing 2024 contested proxy materials (four-person slate)
    2024-04-26 : Annual General Meeting; board election contested; pre-meeting committees later litigated
    2024-05-01 : Company announces final AGM vote results (Desai & Kazarian)
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elected; Donovan & Hoene re-elected)

2024-09-19 : Saba submits 2025 nomination notice (per New Directors' counsel correspondence excerpts)

2024-10-14 : New Directors' counsel alleges "sham committees" and governance exclusion

2024-11-08 : ASA 8-K discloses board split, separate counsel, governance correspondence

2024-12-19 : Rights Plan Committee adopts new limited-duration rights plan (December 2024 iteration)

2025-03-28 : SDNY summary judgment: rescinds Dec 2024 rights plan; finds plausible inference of entrenchment

2025-03-31 : Rights Plan Committee authorizes another rights plan; ASA indicates intent to appeal

2025-04-07 : Saba requisitions a Special Meeting (board expansion + add director)

2025-04-28 : Saba files definitive proxy statement for Special Meeting; proposes board expansion + Maryann Bruce

2025-05-08 : Bermuda Supreme Court issues interim injunction (directors/ resources/meeting process dispute)

2025-06-04 : Bermuda Supreme Court extends injunction (per public announcement)

2025-06-13 : Special General Meeting held (board expansion / appointment outcome subsequently reflected in governance)

2025-08-06 : Legacy Directors Donovan & Hoene resign (per company 8-K / disclosures)

2025-08-22 : Company announces director resignations + Karen Caldwell appointment

2025-10-01 : Service provider change: SS&C Fund Services becomes fund administrator/accountant

2025-11-06 : AGM held (board nomination slate includes Bruce, Caldwell, Desai, Kazarian, Neilinger)

2026-03-31 : 90-day advisory agreement extension + Cantor engaged for Special Committee review; distribution increased

Management and governance assessment

Ownership, control, and alignment

The **2025 proxy statement** discloses a highly concentrated holder base for a closed-end fund. As of **09/24/2025**, ASA reported **18,872,332 shares outstanding** and listed the following >5% holders (based on SEC filings):

- **Saba Capital Management, L.P.: 4,650,898 shares (24.64%)**
- **Lazard Asset Management LLC: 2,376,377 shares (12.59%)**
- **Morgan Stanley Smith Barney LLC: 1,197,203 shares (6.34%)**
- **Sessa Capital GP, LLC: 1,050,000 shares (5.56%)** ²⁴

Executive ownership is relatively modest. ASA's 2025 proxy statement discloses **Axel Merk: 317,660 shares (1.68%)** and **Peter Maletis: 1,000 shares (0.01%)**, while independent directors are listed as owning none as of the record date. ²⁵

Ownership pie (major holders only; remainder is everyone else) is therefore:

```
pie
  title ASA ownership (beneficial owners >5%) as of 09/24/2025
  "Saba Capital (24.64%)" : 24.64
  "Lazard AM (12.59%)" : 12.59
  "Morgan Stanley (6.34%)" : 6.34
  "Sessa Capital (5.56%)" : 5.56
  "All other holders (50.87%)" : 50.87
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This >5% table is from ASA's definitive 2025 proxy statement. ²⁴

Board composition, independence claims, and practical influence

ASA's 2025 proxy statement states the board was composed of **four directors who are not "interested persons"** under the Investment Company Act definition, while also nominating **five individuals** (Bruce, Caldwell, Desai, Kazarian, Neilinger) for election at the November 2025 AGM. ²⁶

From a *practical* influence perspective (as distinct from legal "interested person" definitions), multiple directors have overlapping governance roles in Saba-managed vehicles (BRW, SABA) and/or direct employment ties to Saba (Kazarian). ²⁷ This is important for shareholders because it increases the likelihood that Saba's preferred structural outcomes (discount monetization, adviser replacement, mandate changes) can be advanced even without 50%+ ownership.

Compensation and cost structure

Director compensation (FY ended 11/30/2024): ASA discloses that each independent director received a **\$25,000 annual retainer**, board chair received **+\$15,000**, plus meeting fees (e.g., **\$5,000 per in-person meeting** and **\$1,500 per telephonic meeting**). ²⁸

The proxy statement table shows aggregate FY2024 compensation of **\$26,377 for Ketu Desai**, **\$60,463 for William Donovan**, **\$71,000 for Mary Joan Hoene**, and discloses that **Paul Kazarian waived compensation** in FY2024. ²⁹ It also discloses a later step-up: effective 09/19/2025, independent directors would receive a **\$65,000 annual retainer** (plus committee chair fees and special meeting fees). ²⁸

On fund expenses: Bloomberg-displayed data lists **Mgmt Fee ~0.52%** and **Expense Ratio ~1.02%** (as of 03/30/2026). ¹¹ For return maximization, expense reduction is a meaningful lever because it compounds on NAV.

Operational continuity and service providers

The 2025 proxy statement discloses a service-provider change: effective **10/01/2025, SS&C Fund Services** would serve as fund accountant and fund administrator, alongside officer changes (secretary/PFO). ³⁰ This matters because earlier proxy-fight materials alleged administrator disruption/resignation threats; the SS&C transition indicates at least a partial restoration of operational continuity. ³¹

Litigation, poison pills, and governance “friction costs”

A central, measurable shareholder-return risk in this saga is **governance friction cost**: legal fees, management distraction, and service-provider instability.

Saba’s Special Meeting proxy statement asserts ASA adopted a limited-duration poison pill on 12/31/2023 and then “re-adopted” materially similar plans multiple times (April/August/December 2024; March 2025), resulting in a rights plan effectively kept in place beyond the statutory 120-day framework (as litigated). ³²

ASA’s own disclosures confirm the SDNY litigation exists and that, in a **03/28/2025 summary judgment ruling**, the court held the company’s rights plan had been illegally extended beyond the 120-day limit and rescinded the December 2024 plan (with entrenchment inferences referenced in filings). ³³

Bermuda litigation added another layer: the Government of Bermuda-published ruling describes an application for directions and interim injunctions regarding special general meetings and governance actions. ³⁴ Public announcements (Business Wire) further describe injunctions restraining certain directors’ use of company resources and ordering withdrawal of certain filings. ³⁵

From a shareholder-return lens, **the existence of repeated rights-plan actions and multi-forum litigation is a negative**, unless it produces a faster settlement that directly closes the discount or secures superior advisory economics.

Expected shareholder value impact of each faction’s agenda

Saba faction value thesis

Saba’s explicit 2024 contested proxy framing is that ASA has a **persistent discount** and needs new board perspectives, nominating a full slate to take control and “take action to close the Fund’s discount.” ²

Mechanisms Saba-aligned boards typically use in closed-end funds (as implied by the dispute record) include: - Forcing structural discount capture: tender offers, periodic liquidity events, conversions/open-ending, liquidation or merger/reorganization. - Adviser economics reset: renegotiate/replace adviser to capture fee savings; in adversary framing, potentially replacing the adviser with an affiliate to create a fee stream. ³

Shareholder value upside case for Saba-aligned control: - **Discount capture is large and immediate** relative to typical annual alpha. With a ~12.6% discount, a credible path to NAV liquidity can create **~+14% mechanical uplift** plus lower friction. ¹¹ - Court decisions criticizing repeated rights-plan re-adoptions

strengthen Saba's argument that governance defenses were costly and value-destructive entrenchment rather than value-protective negotiating tools. ³³

Key risks: - If Saba's economic incentive is primarily to monetize the discount and exit, long-term holders may be left with **a smaller vehicle, higher per-share expense burden, or altered exposure**. This exact concern (activists forcing short-term liquidity events harming retail investors) is echoed in the legacy side's counsel letter citing the Eaton Vance litigation findings. ³⁶ - The defender-side materials allege Saba could seek to repurpose ASA (including references to exploring fixed income), which could be value-destructive if it sacrifices a high-convexity gold-equity exposure during a favorable cycle. ³⁷

Legacy/management-defender value thesis

The defender narrative emphasizes: - Protecting long-term mandate execution (gold/miners exposure). - Preventing "creeping control" via rights plans to force negotiation and prevent activists from extracting value at the expense of long-term investors. ²²

Shareholder value upside case for the defender approach: - If the adviser's stock selection is strong, maintaining stability through the cycle may maximize compounding; recent trailing returns reported in widely disseminated data are strong. ¹¹

Key risks: - "Defense" mechanisms themselves can destroy value if they (a) keep the discount structurally wide, (b) result in litigation costs, or (c) are struck down and still re-issued, prolonging conflict and shareholder expense. ¹⁷ - The board deadlock period shows a material operational risk: required governance actions (AGM timing, advisory agreement renewal) can become vulnerable in a 2-2 split, elevating uncertainty and potentially widening the discount. ³

Forward catalysts now that the board is acting

The March 31, 2026 company release is the most important forward-looking catalyst signal: (i) **90-day advisory agreement extension** and (ii) **Cantor Fitzgerald engagement to assist the Special Committee in a "review of the Company"** aimed at maximizing risk-adjusted returns and shareholder value. ⁵

This suggests there is an active path toward one or more of: - Adviser fee renegotiation or adviser change - Structural discount management / liquidity events - Strategic transaction (restructuring/combination)

Decision impact map for return maximization

flowchart TD

A["Shareholders choose board direction (AGM / contested votes / shareholder actions)"] --> B["Saba-aligned control strengthened"]

A --> C["Legacy/defender approach strengthened"]

B --> B1["Board prioritizes discount-to-NAV realization"]

B1 --> B1a["Large tender(s) / periodic tenders"]

B1 --> B1b["Open-end / liquidation / merger"]

B1 --> B2["Adviser economics reset (fee renegotiation or replacement)"]

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    B1a --> U1["Potential outcome: faster discount closure; near-term price
uplift + governance clarity"]
    B1b --> U2["Potential outcome: NAV realization; but potential tax/friction +
loss of future optionality"]
    B2 --> R1["Risk: inferior portfolio management or conflicted adviser change;
performance drag"]

    C --> C1["Maintain mandate + defend against activist control"]
    C1 --> C2["Rights plan / governance defenses / litigation"]
    C1 --> C3["Incremental discount management (buybacks / small tenders)"]

    C2 --> D1["Risk: legal costs + discount persists; value leakage"]
    C3 --> D2["Potential: modest discount narrowing; slower value realization"]

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This map is derived from the stated objectives and dispute points in the parties' proxy filings and related governance disclosures. ³⁸

Voting recommendation focused on maximizing shareholder returns

What a return-maximizing shareholder should want, explicitly

Given a persistent discount regime, a return-maximizing shareholder should push for a board and process that credibly commits to:

- A **time-bound** discount-to-NAV action plan (e.g., defined tender schedule or strategic transaction timeline), because a double-digit discount implies double-digit potential uplift if closed. ¹
- A reduction in governance friction costs (ending multi-forum warfare) and a rights-plan posture consistent with sustainable legal compliance (courts have already criticized repeated re-adoptions). ³³
- Adviser accountability: retain or replace the adviser based on measurable success and fee competitiveness; Bloomberg-reported expense ratios suggest there is room for economic improvement. ³⁹

Recommendation

Default recommendation (most evidence-supported for return maximization): vote in favor of the faction/slate that is most likely to execute near-term discount capture and fee/structure optimization—i.e., the Saba-aligned direction—while insisting on guardrails around adviser conflicts and mandate changes.

Rationale grounded in sourced facts: - Saba's contested proxy materials explicitly target the **discount** and seek board control to force action. ² - ASA's history shows the discount has been persistent, and current published figures show it remains materially negative (~-12.6%). ¹ - Legal and governance events (committee disputes, repeated rights plans, litigation outcomes) indicate the legacy-defense regime created

substantial friction and arguably hardened the discount rather than resolved it. ⁴⁰ - The current board posture (Special Committee review + investment advisory extension) is consistent with a structural/endgame review—exactly the type of process that can unlock discount value if executed properly. ⁵

When this recommendation would change

This pro-Saba/structural-unlock vote is **not** unconditional. A return-maximizing shareholder should downgrade/reverse support if credible evidence emerges that: - The plan is primarily **adviser rent extraction** (replace the adviser with a Saba affiliate) rather than discount capture + fee reduction for shareholders (a risk raised explicitly by the legacy side). ³

- The board pursues a **mandate change** that destroys expected value (e.g., abandoning a high-convexity gold-miners approach in favor of a lower-return profile) without a NAV-realization offset. ³⁷

- Litigation and disruption costs re-accelerate (service-provider churn, escalating legal spend), overwhelming any discount benefit. ⁴¹

Missing data and methodological limits

A key requested element—**event-based 1/3/6/12-month return tables across multiple prior “targets” for each faction**—requires a consistent historical price dataset for each referenced company/fund and a clearly defined “action date” per campaign. In this environment, I obtained robust primary filings on the ASA contest (SEC proxy statements, 8-Ks, court rulings) but did not retrieve a complete standardized price history dataset across external targets sufficient to compute that table to a high-integrity standard for all parties.

For ASA specifically, the most decision-relevant quantitative “return opportunity” is the **discount itself** (publicly disclosed) rather than short-window price moves, because discount-closure is the direct activist value lever. ⁴²

¹ ¹¹ ³⁹ ⁴² <https://www.bloomberg.com/quote/ASA%3AUS>

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